

H.R.1 - Family and Medical Leave Act of 1993

103rd Congress (1993-1994)

Sponsor:
Committees:
Latest Action:
Roll Call Votes:
Tracker:

[Rep. Ford, William D. \[D-MI-13\]](#) (Introduced 01/05/1993)
House - Education and Labor; Post Office and Civil Service; House Administration
02/05/1993 Became [Public Law No: 103-3](#). ([All Actions](#))
There have been [9 roll call votes](#)

Introduced

Passed House

Passed Senate

Resolving Differences

To President

Became Law

Summary (3)

Text (6)

Actions (68)

Titles (6)

Amendments (4)

Cosponsors (170)

Committees (3)

Related Bill

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Passed Senate amended (02/04/1993) ▼

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Passed Senate amended (02/04/1993)

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Family and Medical Leave Act of 1993 - **Title I: General Requirements for Leave** - Establishes certain requirements for unpaid family and medical leave for permanent employees.

(Sec. 101) Makes employees eligible for such leave if they have been employed, by the employer from whom leave is sought, for at least: (1) a total of 12 months; and (2) 1,250 hours of service during the previous 12-month period. (Excludes from such coverage: (1) employees at worksites at which the employer employs less than 50 persons, if the total number of employees of that employer within 75 miles of that worksite is less than 50; and (2) Federal officers and employees covered under title II of this Act.)

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(Sec. 102) Entitles employees to 12 workweeks of leave during any 12-month period because of: (1) the birth of their child; (2) the placement of a child for their adoption or foster care; (3) their care of a child, spouse, or parent who has a serious health condition; or (4) their own serious health condition which makes them unable to perform the functions of their position.

Conditions such leave for the birth or placement of a child as follows: (1) the entitlement ends 12 months after the birth or placement; and (2) such leave may not be taken intermittently unless employee and employer agree otherwise.

Allows intermittent leave for necessary medical treatment of an employee or family member. Allows the employer to require a temporary transfer to an equivalent alternative position that better accommodates such intermittent leave.

Allows all leave under this title: (1) to be taken on a reduced leave schedule, upon agreement with the employer; and (2) to consist of unpaid leave, except under specified conditions when substitution of certain types of paid leave may be elected or required. Does not require an employer to provide paid sick or medical leave in any situation in which the employer would not normally provide any such paid leave.

Requires employees to: (1) give at least 30 days' notice of the need for leave to which they are entitled under this Act, when foreseeable; and (2) make a reasonable effort to schedule medical treatment or supervision so as not to disrupt unduly the employer's operations, subject to approval of the health care provider.

Allows limitation of the dual aggregate leave entitlement to 12 weeks in any 12-month period, in the case of spouses employed by the same employer, if such leave is for the birth or placement of a child or for the care of a sick parent.

(Sec. 103) Sets forth conditions of certification for leave entitlements under this Act.

(Sec. 104) Requires restoration of the employee to his or her position or an equivalent position upon return from such leave. Allows an employer to deny such restoration to certain highly compensated employees, under specified conditions (the highest paid ten percent of the employer's employees within a 75-mile radius of a facility; the denial must be necessary to prevent substantial and grievous economic injury to the employer's operations).

Requires maintenance of employee health benefits during such leave.

(Sec. 105) Prohibits interference with or discrimination against employees exercising rights under this title.

(Sec. 106) Sets forth the investigative authority of the Secretary of Labor under this title.

(Sec. 107) Provides for enforcement of this Act. Provides for administrative and civil actions. Makes an employer who violates this title's prohibitions against interference or discrimination liable for damages in the amount of: (1) any wages, salary, employment benefits, or other compensation denied or lost; (2) (where such compensation has not been denied or lost) any actual monetary losses, such as the cost of providing care; (3) interest on such losses; and (4) liquidated damages under certain conditions. Makes such employers also liable for appropriate equitable relief, including, without limitation, employment, reinstatement, and promotion. Sets forth provisions for attorney's fees, limitation of actions, and injunctions, other equitable relief, and the Solicitor of Labor's role in such litigation.

(Sec. 108) Sets forth special rules concerning employees of local educational agencies and of private elementary and secondary schools.

(Sec. 109) Sets forth requirements for posting notice and for fines.

Title II: Leave for Civil Service Employees - (Sec. 201) Entitles eligible civil service employees to family and temporary medical leave for specified periods.

Allows up to 12 administrative workweeks of leave without pay (or substituted paid leave) in any 12-month period for: (1) family leave (i.e., leave because of the birth or placement of a child or care of a sick spouse, child, or parent); or (2) temporary medical leave for a serious health condition that makes the employee unable to perform the functions of their position.

Sets forth: (1) requirements for employees to give prior notice; (2) certification provisions; (3) protections for job position and health insurance benefits; and (4) prohibitions against coercion.

Requires the Office of Personnel Management to prescribe regulations for this title which are consistent with the regulations prescribed by the Secretary of Labor under title I of this Act.

Title III: Commission on Leave - (Sec. 301) Establishes the Commission on Leave.

(Sec. 302) Requires the Commission to conduct a comprehensive study of: (1) existing and proposed leave policies; (2) the potential costs, benefits, and impact on productivity of such policies on employers; and (3) alternative and equivalent State enforcement of this Act with respect to employees of local educational agencies and private schools.

Requires the Commission to report on such study to the Congress within two years after the Commission first meets. (Sec. 306) Terminates the Commission within 30 days after its report to the Congress.

Title IV: Miscellaneous Provisions - (Sec. 401 and Sec. 402) Sets forth the effect of this Act on other laws and existing employment benefits.

(Sec. 403) Provides that nothing in this Act shall be construed to discourage employers from adopting more generous leave policies.

(Sec. 404) Directs the Secretary of Labor to prescribe regulations to carry out this title (except those provisions applicable to the Senate) within 60 days.

Title V: Coverage of Congressional Employees - (Sec. 501) Applies the rights and protections established under specified provisions of title I of this Act to Senate employees. Makes specified provisions of the Government Employee Rights Act of 1991 applicable, with certain exceptions. Provides that allegations shall be considered by the Office of Senate Fair Employment Practices or another entity designated by the Senate. Requires such Office to ensure that Senate employees are informed of their rights under this Act.

(Sec. 502) Applies the rights and protections under title I of this Act to employees of the House of Representatives, except for the exemption concerning highly compensated employees. Requires that the remedies and procedures under the Fair Employment Practices Resolution be applied in administering such coverage.

Title VI: Sense of Congress - Expresses the sense of the Congress that: (1) the Secretary of Defense shall conduct a comprehensive review of current departmental policy with respect to the service of homosexuals in the armed forces, including specified considerations, and report, with recommendations, to the the President and the Congress by July 15, 1993; and (2) the Senate Committee on Armed Services shall conduct comprehensive hearings on such policy and oversight hearings on such Secretary's recommendations.